

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

Aditya Desai vs The State Of Uttar Pradesh ... on 9 March, 2024
2025 Cri LJ 2778, AIR 2022 SC 1256
Bench: Revati Mohite Dere, J. and M.M. Sundresh, J.

JUDGMENT

Revati Mohite Dere, J.

1. The applicant, Aditya Desai, has approached this Court under Section 482 of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023, seeking regular bail in connection with C.R. No. 187 of 2024 registered with Special Enquiry Cell, Uttar Pradesh. The offences alleged are punishable under Section 111 of the Bharatiya Nyaya Sanhita (BNS), 2023 and Section 66D of the Information Technology Act, 2000.
2. The prosecution case is that a coordinated digital fraud syndicate caused wrongful loss of Rs. 0.9 Crores between 05-12-2021 and 17-07-2021. The applicant was arrested on 11-03-2022 for allegedly providing logistics and server infrastructure to the prime conspirators.
3. Mr. Rohatgi, learned Senior Counsel for the applicant, submitted that the investigation is complete and the charge sheet was filed on 21-12-2022. He contends the applicant had no mens rea, and that the CDR and cell-site records relied upon by the prosecution were seized without mandatory certification under Section 63 of the Bharatiya Sakshya Adhiniyam (BSA), 2023.
4. Counsel placed reliance on (2014) 8 SCC 273 in the case of Arnesh Kumar v. State of Bihar, and on (2022) 10 SCC 51 in the case of Satender Kumar Antil v. CBI, on the principle that continued custody must not become punitive where trial will take time.
5. Learned APP Ms. Khan opposed, contending that bank ledger audits and the panchanama dated 11-06-2023 establish the applicant's proximity to the operating nodes, and that Ex. P-14 seizure memo links the leased servers to the applicant.

6. Upon consideration of the charge sheet, this Court finds custodial interrogation has concluded; no direct fund trail touches the applicant's accounts; and trial will take considerable time. Further detention would serve no purpose.

7. The applicant is directed to be released on bail on executing a P.R. Bond of Rs. 75,000/- with one or two local sureties. Bail application is allowed.

M.M. Sundresh, J. - I agree.